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Recent Trends

- Remote Hearings
- Electronic Filings
- Digital Evidence
- Online Dispute Resolution
- AI - assisted case allocation
 - optimizing jurisdictional efficiency

- Tribal Court Jurisdiction
- One family - one judge principle
- Surrogacy arrangements
- Religious Arbitration - Beth Din, Shara Council.
- Emergency Jurisdiction
- Neuro-link - Brain Computer Interface

Transformation Landscape - Paradigm Shift:

1. From formalistic to functional
2. " patriarchal to egalitarian
3. " nuclear to diverse
4. " local to global - int. coordination.
5. " punitive to therapeutic
6. " static to dynamic. → adaptive jurisdiction.
7. " adult centered to child-focused.

Appeal / App.

Appellate Review

→ often reviewed for abuse of discretion

- Conflict of law vs Choice of law.
- No res judicata effect.
 - Jurisdictional dismissal allow refiling of the case

CLS

- Elite forum Access e.g. Arbitration
- Marginalized Exclud. - standing, mootness
- Sovereignty as Myths
- Information Asymmetries

Procedural / substantive distinction in Jurisdiction

- Historically Contingent
 - varies across legal systems
- Strategically deployed - manipulated for advantage
- Theoretically unstable - breaks down under scrutiny (their difference)
- Practically significant - affects real outcomes
- Jurisdictionally evolving - responding to new challenges

Choice of law Vs. conflict of laws (Priv. Int. law)

Conflict of law = umbrella term. It asks three

fundamental questions:

1. Jurisdiction → Do I have power to hear?
2. Choice of law → French law or UK law.
3. Enforcement of foreign judgement
→ Will the judgement be enforced in another country?

Lujan V. Defenders of Wildlife (1992)

Facts:

An env. group challenged a federal regulation, claiming it harmed their member's ability to observe endangered species abroad.

Principle estd:

The Court estd. a strict 3-part test for standing, emphasizing that the injury must be:

- "concrete & particularized"
 - "actual or imminent"
 - "not conjectural or hypothetical"
- clear & present danger test

The plaintiffs have failed because their alleged injury was too vague & not redressable by the court.

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Levels of Scrutiny (JR):

Courts have different "levels of scrutiny" to evaluate constitutionality of laws:

1. Strict Scrutiny:

→ Applied to laws that infringe on FRs.

2. Intermediate Scrutiny:

→ Applied to laws involving quasi-suspect classification (eg. gender)

3. Rational Basis Review

→ The law must be rationally related to a legitimate gov. interest.

JR ensures constitution remains a living, enforceable document & that judiciary act as co-equal branch of gov. checking powers of legislature & executive.

Prudential Limits to JR:

→ Political Question

→ Standing

→ Ripeness / Mootness.

• Judges' Transfer Case (S.P. Gupta v. UOI) (1981)

Principle estd.

Court formally recognized the concept of

Public Interest (PTI)

It held that any member of the

public or a social group action group

acting in good faith can approach the

court for the enforcement of constitutional

rights of any group or person

unable to do so themselves.

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• J.R. Coelho v. State of Tamil Nadu (2007)

The court reaffirmed the basic str. doctrine with full force.

↳ It held that any law placed in 9th schedule after KB case (1973) is open to JR. & can be struck down if it violates Basic str. of Constitution.

^{4 Nepal}
In essence, the Indian SC has crafted a unique model of constitutional review that is both a brake on majoritarian power (Basic Str. Doctrine) and an engine for social progress (via PIL & right expansion)

Kelsenian Model of JR

• The constitutional court's sole job is to act as a "negative legislator." (Kelsenian Model)
It can strike down a law, but it cannot create a new one to replace it.

Two Methods:

1. Abstract Review:

Laws can be challenged directly without a concrete case or controversy.

2. Concrete Review:

Triggered by a referral from an ordinary court during ongoing litigation.

Influence:

- Germany
- Italy
- Spain
- South Korea
- most of post-communist European states

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Militant Democracy:

- Uses democratic process to destroy democracy.
- Ex: Banning of political parties.

German Federal Constitutional Court banned the neo-Nazi Socialist Reich Party (1952) & the Communist Party of Germany (1956).

The Court held that a political party could be unconstitutional if ~~banned~~ it displays "fighting, aggressive attitude" against the free democratic basic order.

JR:

French Model: (Original Model - The Conseil Constitutionnel)

→ Antithesis of American Model.

→ A priori (Pre-promulgation) Review.

→ Historically, the French tradition, rooted in Rousseau's concept of the general will, was deeply suspicious of "government by judges."

→ Once a law was promulgated, it was immune from constitutional challenge.

→ No constitutional protection for citizen against a law that was already in force, no matter how unconstitutional it proved in practice.

Modern Model: (A priori + A posteriori Review)

The Revolution & 1971 Deixon & 2008 Reform

→ the Conseil Constitutionnel declared

that it would review laws not just against the text of the constitution, but also against the "fundamental principles recognized by the laws of the Republic." (French bill of rights)

→ 2008 constitutional Amendment adopted a form of a posteriori (after - the fact) review.

JR: The Dialogue Model: Canadian "Notwithstanding Clause"

Peccancy → Legislative Override of JR

Mechanism → Parliament or a provincial legislature can explicitly pass a law "notwith- standing" certain fundamental rights.

→ Such a declaration is valid for 5-yr but can be re-enacted indefinitely.

Significance → This creates a form of dialogue betw the court & the legislature. The court can declare a law unconstitutional, but the legislature will can respond by passing a law.

Conclusion → It acknowledges that the elected bodies have the final say on certain fundamental social issues.

JR: The "International Reviewer": The EU Court of HR. (ECtHR)

Peccancy → Supranational Constitutional Review.

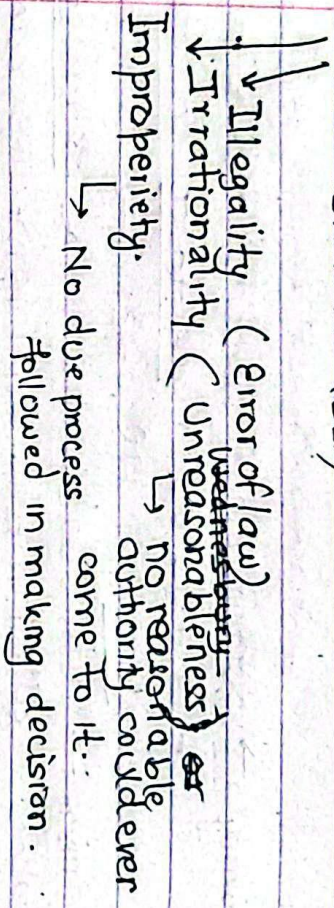
→ it acts as a de facto constitutional court for HR for 46 member states all domestic legal remedies can bring a case against their own government, alleging a violation of European Convention of HR.

→ ECtHR judgements are legally binding on the member states.
→ often requiring to change their laws
→ pay compensation
→ reopen domestic court proceedings

Significance → This represents a massive transfer of sovereignty.

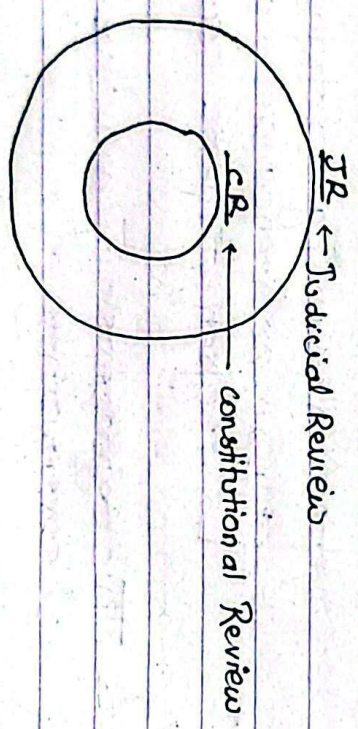
Grounds for JR of Administrative Action:

→ III - formula. (31)



Public Power should be exercised:

- Legally (within boundaries of law)
- Rationally (not absurd or disproportionate ways)
- Fairly (following just procedure)



Infamous decision:

1. Dred Scott v. Stanford (1857)

→ Black people whether enslaved or free could never be us citizens. They have no "standing" to sue in federal court.

2. Plessy v. Ferguson (1896)

→ Equal but separate doctrine.

→ It ruled that racial segregation was constitutional as long as the facilities were physically equal.

→ state-sponsored racial segregation.

→ Overruled in Brown Vs BOE. (1954)

3. Korematsu v. US (1944)

Issue → Did Presidential Order for the internment (detention) of Japanese Americans (US citizens) during WWII. violate 5th amendment?

Decision Court (6-3)

→ No. Court upheld the internment as a "Military Necessity".

criticism → sanctioned based solely on their ancestry. It was never formally overturned, but it is ^{unofficially} condemned.

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4. Buck v. Bell (1927)

Issue - Did a Virginia law allowing for the forced sterilization of "intellectual disabled" individuals for the purpose of eugenics, violate Due Process & Equal Protection clause?

Decision (8-1): No. The Court upheld the law. Justice Oliver Wendell Holmes, Jr. infamously wrote, "Three generations of imbeciles are enough".

Criticism & Impact - The decision has never been explicitly overruled, though it has undermined bodily integrity & disability rights. It remains a dark stain on the Court's Record.

5. Bowers v. Hardwick (1986)

Issue - Did the constitution confer a FR upon homosexual to engage in sodomy?

Decision (5-4): No. The Court upheld Georgia sodomy law.

Criticism & Impact:

- It legitimized the criminalization of gay intimacy & was a major setback for the LGBTQ+ rights movement.

- The majority opinion was widely criticized for its dismissive & moralistic tone.

- It was directly overruled 17 years later in Lawrence v. Texas (2003).

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6. Citizen United v. FEC (2010)

UK: R v. R (1991) - The Marital Rape Exemption

Issue: Could a man be convicted of raping his wife?

Decision (House of Lords): Yes. The court abolished the centuries-old common law rule that a husband could not be guilty of raping his wife.

Criticism: Accused of judicial legislation.

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Infamous decision of Indian SC:

1. ADM Jabalpur v. Shivkant Shukla (1976)

— The Habeas Corpus Case

→ widely considered as the darkest hour of Indian Judiciary.

~~Issue:~~ Context:

During the Internal Emergency (1975-1977) declared by PM Indira Gandhi, FRs including RTL & personal liberty (Art. 21) were suspended.

Issue:-

Could a person detained without Trial file a writ of Habeas Corpus challenging their detention?

Decision (4-1):

The majority held that in a state of emergency, no person had any locus standi to file a writ petition challenging their detention.

Criticism -

→ Surrender of Judicial Power

↳ The court signed its own death warrant

→ Justice H.R. Khanna's ^{Heroic} Dissent became legendary.

↳ Note: He was superseded for the post of CJ as a consequence.

→ Symbol of Judicial Cowardice

↳ In 2017, a 9-judge bench in

Justice K.S. Puttaswamy v. UOI (the Privacy Case) expressly overruled ADM Jabalpur, stating it was "seriously flawed" & should "be forgotten."

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2. A.K. Gopalan v. State of Madras (1950)

- The narrow view of liberty.

Issue:

A communist leader detained under a preventive detention law challenged his detention, arguing it violated FR. (freedom of movement Art. 19 & Personal Liberty Art. 21)

Decision

→ Court held that Art. 21 (procedure estd by law) required only the procedure laid down by the statute be followed. It didn't require that the procedure be fair, just & reasonable. (Legal formalism over each substantive Justice)

→ Further, it held that FR. existed in watertight compartment.

Criticism: Rejected the American concept of "due process".

- The decision was implicitly overruled 23 yr later by in Maneka Gandhi v UOI (1978)

3. Golaknath & Ors vs. State of Punjab (1967)

- The FRs are Unamendable.

Issue: Can Parliament amend FRs?

Decision (6-5)

- Parliament could not amend or abridge FRs.

Criticism:

- Extreme form of Judicial Overreach.
- Modified by in K.B. Case (1973) estd.
→ Estd. Basic Str. Doctrine
↳ Allowed for amendment of FRs but not the destruction of Basic Str. of Constitution.

268 4. Nareesh Shridhar Mirajkar V. State of Maharashtra (1968)

Issue:

Can a judicial order passed by a HC judge in open violate FRs?

Decision

- The SC held that a judicial order, even if wrong, cannot be said to violate FRs.
- Judiciary is not bound by Part III of the Constitution when exercising its judicial function.

Criticism

- Dangerous precedent that the judiciary itself is above the Constitution.

• FR & DPSP: Dichotomy to Integrated View

∴ Contradictory to Complementary

1951:-

Champakam Dorairajan Case.

- ↳ FRs held superior to DPSP must conform to FRs.
- ↳ if contradicts: FR prevails over DPSP.

1967:-

Golaknath Case.

- ↳ Parliament power to amend FRs restricted

1973:-

KB Case.

- ↳ Basic Str. Doctrine introduced.
(FRs are subjected to amendment but cannot destroy basic str.)

1978.

Minerva Mills Case.

- ↳ Harmony betn FR & DPSP is a part of basic str.

1980's onward:

- FR Judicial Innovation: FRs interpreted in light of DPSP.